

PEOPLE VS. ROSS

Case Number: CVG21-0000575

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Lexington National Insurance Corporation moves to set aside summary judgment, discharge forfeiture, and exonerate bail. Respondent prosecuting agency County of Shasta opposes the motion. The Court notes that the County's Opposition was filed one day late. Plaintiff's Reply was filed four days late.

Defendant's Notice of Motion indicates that this Motion is made on the grounds that the Court lacked jurisdiction to enter a summary judgment, and CCP § 473. Code of Civil Procedure § 473(b) provides in relevant part, that the court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and *shall be made within a reasonable time, in no case exceeding six months*, after the judgment, dismissal, order, or proceeding was taken.

Penal Code § 1305, regarding forfeiture of the undertaking of bail, provides at subsection (j), that a motion filed in a timely manner within the 180-day period may be heard within 30 days of the expiration of the 180-day period. The court may extend the 30-day period upon a showing of good cause.

Here, Defendant failed to appear on March 9, 2020, and notice of bail forfeiture was properly prepared and mailed to defendant's bail bond surety on March 10, 2020. The period for setting aside the forfeiture of the bond lapsed without defendant appearing in court, and without the bail bond agent having shown to the satisfaction of the court that the forfeiture be vacated and the bond exonerated. Therefore, Summary Judgment was entered on May 10, 2021. The instant Motion to Set Aside was filed March 27, 2025, nearly four years later, without any explanation for the delay in filing. Moreover, a review of the case file reveals that the bail agent previously moved to set aside summary judgment, vacate forfeiture, and exonerate bail, on June 3, 2021. That Motion was denied after hearing on June 28, 2021. Plaintiff fails to address the estoppel effect of the prior decision. Plaintiff does not request reconsideration of that decision. The Motion is DENIED. A proposed order has been lodged and will be modified and executed by the Court.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

Case Number: 23CV-0203171

Tentative Ruling on Motion for Summary Judgment: Defendants Vibra Healthcare, LLC and Vibra Hospital of Northern California move for summary judgment on the First Amended Complaint filed by Plaintiffs Richard Ward and Houva Ward on June 5, 2024. The First Amended Complaint alleges causes of action for Neglect and Physical Abuse of a Dependent Adult and Loss of Consortium. As a preliminary matter, the Reply was filed on May 5, 2025. Replies are due no less than eleven days prior to the hearing date. CCP § 437c(b)(4). No explanation was provided for the Reply being late, however, the Court will exercise its discretion to consider the late filed Reply as it does not change the outcome of the Court's tentative ruling.

Summary judgment may be granted where it is shown that the action has no merit or that there is